

Court No. - 39

Case :- WRIT - C No. - 1326 of 2021

Petitioner :- Sughar Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Yogesh Kumar Srivastava, Noor Muhammad

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of respondent no. 3 and learned Standing Counsel appearing on behalf of respondent nos. 1, 2 and 4.

This writ petition has been filed seeking following reliefs:-

"i) Issue a writ, order or direction in the nature of certiorari for quashing the recovery demand notice issued by respondent no. 3 amounting to Rs. 2,25,554/-.

ii) Issue a writ order or direction in the nature of mandamus directing the respondent no. 3 to accept the due amount in easy installment."

Learned counsel appearing for respondent no. 3 submits that since the petitioner is not disputing the demand raised toward electricity bills and is ready to pay the same, the petitioner may approach under Clause 6.14 of the U.P. Electricity Supply Code, 2005 before respondent no. 3, which shall be considered by the respondent-authority, in accordance with law.

Without entering into the merits of the case, this writ petition is ***disposed of*** directing the petitioner to move a fresh representation before respondent no. 3 under Clause 6.14 of the U.P. Electricity Supply Code, 2005 within two weeks' from today ventilating his grievances and in case, such representation is moved, the same shall be considered and decided by respondent no. 3 who shall pass an appropriate, reasoned and speaking order, as expeditiously as possible, preferably within a period of four weeks' from the date of receipt of a copy of this order.

For a period of six weeks or till any final decision is taken on the representation of the petitioner, whichever is earlier, no coercive action shall be taken against him.

Order Date :- 27.1.2021

Saurabh